

# Menakshi Sharma vs Amit Sharma on 7 February, 2020

**Author: Rajesh Bindal**

**Bench: Rajesh Bindal**

Sr. No.

HIGH COURT OF JAMMU AND KASHMIR  
AT JAMMU

Trp(C) No. 6/2020  
CM No. 779/2020

Menakshi Sharma

...Petit

Through: - Mr. Rajiv Kumar Sharma, Advoc

v/s

Amit Sharma

... Respondent(s)

Coram: HON'BLE MR. JUSTICE RAJESH BINDAL, JUDGE

ORDER

Learned counsel for the petitioner submitted that the proceedings in an application filed by the petitioner under Section 488 J&K Cr.P.C is pending at Jammu. The petitioner has to maintain an infant child born out of the wedlock. A meager sum of 5000/- is being paid as maintenance to the petitioner. Now the respondent has filed a divorce petition at Samba after withdrawing the earlier petition filed under Section 9 of the Hindu Marriage Act, for restitution of conjugal rights.

Notice to the respondents for 20.03.2020. In the meanwhile, further proceedings before the court below shall remain stayed.

(RAJESH BINDAL) JUDGE Jammu 07.02.2020 Bir